

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
McEVANS FRANCOIS and JOSHUA ALLEN,

Index No.: 26295/2015E

Plaintiffs,

-against-

CITY OF NEW YORK,
POLICE OFFICER GUERRERO, TAX REG. #953935,
POLICE OFFICER McCLOUD, TAX REG. #954114, and
OFFICERS JOHN AND JANE DOE 1-50, SAID NAMES
BEING FICTITIOUS AND PRESENTLY UNKNOWN,

**AMENDED
VERIFIED
COMPLAINT**

Defendants.
-----X

Plaintiffs, McEVANS FRANCOIS and JOSHUA ALLEN, by their attorney, LAW OFFICE
OF STEPHANIE G. OVADIA, complaining of the Defendants, allege as follows:

1. At all times hereinafter mentioned, Plaintiff McEVANS FRANCOIS was and still is a resident of Kings County, New York.
2. At all times hereinafter mentioned, Plaintiff JOSHUA ALLEN was and still is a resident of Queens County, New York.
3. Upon information and belief, at all times hereinafter mentioned, Defendant CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
4. On or about December 13, 2014 and within ninety (90) days after the claim herein arose, Plaintiffs timely filed a Notice of Claim with the Comptroller of the City of New York, setting forth the facts underlying Plaintiffs' claim against Defendant, CITY OF NEW YORK.
5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused.
6. This action has been commenced within one year and ninety days after the occurrence of

the events giving rise to this Complaint.

7. Upon information and belief, at all times mentioned, Defendant POLICE OFFICER GUERRERO, TAX REG. #953935 (hereinafter "Officer Guerrero"), was and is, an officer of the Defendant CITY OF NEW YORK, and at all times herein was acting in such capacity as the agent, servant, and employees of the Defendant CITY OF NEW YORK.

8. Upon information and belief, at all times mentioned, POLICE OFFICER McCLOUD, TAX REG. #954114 (hereinafter "Officer McCloud"), was and is, an officer of the Defendant CITY OF NEW YORK, and at all times herein was acting in such capacity as the agent, servant, and employees of the Defendant CITY OF NEW YORK.

9. Upon information and belief, at all times mentioned, OFFICERS JOHN AND JANE DOE 1-50, SAID NAMES BEING FICTITIOUS AND PRESENTLY UNKNOWN (hereinafter "Officers John and Jane Doe 1-50"), refers to police officers and other governmental officials who participated in the relevant facts but whose identifies are unknown. (Officers John and Jane Doe 1-50, Officer Guerrero, and Officer McCloud are collectively referred to as "NYPD Officers" and/or "Defendants").

AS AND FOR A FIRST CAUSE OF ACTION

10. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, Plaintiff, McEVANS FRANCOIS, was falsely arrested, falsely imprisoned, illegally searched and seized, by NYPD Officers, who had no probable cause to do so.

11. Defendants, jointly and severally in their capacity as police officers, wrongfully touched and grabbed Plaintiff, McEVANS FRANCOIS, several times, as well as seized Plaintiff, McEVANS FRANCOIS, in an excessive manner about his person, causing him physical pain

and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, McEVANS FRANCOIS, and nor did the Plaintiff, McEVANS FRANCOIS, consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

13. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, the Defendants jointly and severally, did place Plaintiff, McEVANS FRANCOIS, in imminent fear of physical contact by approaching the Plaintiff, McEVANS FRANCOIS, in a menacing manner. All of the above actions placed Plaintiff in imminent fear of physical contact. At no time did Plaintiff, McEVANS FRANCOIS, consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

14. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

15. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, the Defendants jointly and severally, without any warrant, order, or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, McEVANS FRANCOIS, restrained him and his liberty, and then took them into custody. Defendants intentionally confined Plaintiff, McEVANS FRANCOIS, without his consent and the confinement was not otherwise privileged by law, and at all times, the Plaintiff, McEVANS FRANCOIS, was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

16. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

17. Defendants, Officers John and Jane Doe 1-50, Officer Guerrero, and Officer McCloud, were at all times relevant, duly appointed, and acting officers of the City of New York Police Department.

18. At all relevant times, said NYPD Officers were acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

19. Plaintiff, McEVANS FRANCOIS, is and at all relevant times herein, a citizen of the United States and resident of Kings County, in the State and City of New York, and brings this cause of action pursuant to 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State Civil Rights Laws.

20. Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

21. The aforementioned described conduct of the Defendants result in the Plaintiff, McEVANS FRANCOIS, being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from excessive force;
- c. Freedom from battery to his person;
- d. Freedom from illegal search and seizure;
- e. Freedom from false arrest;

- f. Freedom from racial discrimination; and
- g. Equal protection under the law.

22. The Defendants subjected the Plaintiff, McEVANS FRANCOIS, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution.

23. The direct and proximate results of the Defendants' acts are that Plaintiff, McEVANS FRANCOIS, has suffered, and continues to suffer, severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A FIFTH CAUSE OF ACTION

24. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

25. Defendant, CITY OF NEW YORK, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure, excessive force, especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be on probable cause.

26. Defendant, CITY OF NEW YORK, was negligent by failing to implement a policy with this police department and instruct police officers who, absent the consent of Plaintiff, McEVANS FRANCOIS (or similar situated individuals), or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals such as Plaintiff, McEVANS FRANCOIS, here, where probable cause is lacking and

the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant or suspect is not resisting arrest.

27. Defendant, CITY OF NEW YORK, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. Probable cause must be present before an individual such as the Plaintiff, McEVANS FRANCOIS, herein can be arrested.
- b. Force cannot be used against an individual who does not physically resist arrest.
- c. A person's property may not be confiscated and destroyed, and economic opportunity may not be interfered with absent sound legal justification

28. The foregoing acts, omissions and systematic failures are customs and policies of the City of New York which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, McEVANS FRANCOIS, and commit an assault/battery to his person.

AS AND FOR A SIXTH CAUSE OF ACTION

29. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

30. Defendant, CITY OF NEW YORK, knew, or should have known about the propensity for the violations as alleged herein to occur, as they occurred in the past.

31. Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained herein, due to the prior history of the NYPD Officers, knew or should have known the bad disposition of said Defendant officers and defendants had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the City of New York and

that due to their lack of training, these officers should have adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A SEVENTH CAUSE OF ACTION

32. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

33. Defendant maliciously prosecuted Plaintiff, McEVANS FRANCOIS, by issuing several criminal summonses which were unsubstantiated, unsupported by any facts, in bad faith and without probable cause.

34. Defendants caused the summonses to be issued in malice because there was no violation of law as alleged in the summonses.

35. Said summonses were terminated in favor of Plaintiff, McEVANS FRANCOIS, as all summonses were dismissed in a judicial proceeding.

AS AND FOR AN EIGHT CAUSE OF ACTION

36. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, Plaintiff, JOSHUA ALLEN, was falsely arrested, falsely imprisoned, illegally searched and seized, by NYPD Officers, who had no probable cause to do so.

37. Defendants, jointly and severally in their capacity as police officers, wrongfully touched and grabbed Plaintiff, JOSHUA ALLEN, several times, as well as seized Plaintiff, JOSHUA ALLEN, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, JOSHUA ALLEN, and nor did the Plaintiff, JOSHUA ALLEN, consent to this illegal touching nor was it privileged by law.

38. Defendants, jointly and severally in their capacity as police officers, wrongfully touched and grabbed Plaintiff, JOSHUA ALLEN, several times, as well as seized Plaintiff, JOSHUA ALLEN, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff, JOSHUA ALLEN, and nor did the Plaintiff, JOSHUA ALLEN, consent to this illegal touching nor was it privileged by law.

AS AND FOR A NINTH CAUSE OF ACTION

39. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

40. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, the Defendants jointly and severally, did place Plaintiff, JOSHUA ALLEN, in imminent fear of physical contact by approaching the Plaintiff, JOSHUA ALLEN, in a menacing manner. All of the above actions placed Plaintiff in imminent fear of physical contact. At no time did Plaintiff, JOSHUA ALLEN, consent to the unlawful actions of the Defendants.

AS AND FOR A TENTH CAUSE OF ACTION

41. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

42. On or about September 14, 2014, at approximately 2:00 am, in the vicinity of the Sin City Cabaret club located at 2520 Park Avenue, County of Bronx, State of New York, the Defendants jointly and severally, without any warrant, order, or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, JOSHUA ALLEN, restrained him and his liberty, and then took them into custody. Defendants intentionally confined Plaintiff,

JOSHUA ALLEN, without his consent and the confinement was not otherwise privileged by law, and at all times, the Plaintiff, JOSHUA ALLEN, was conscious of his confinement.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

43. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

44. Defendants, Officers John and Jane Doe 1-50, Officer Guerrero, and Officer McCloud, were at all times relevant, duly appointed, and acting officers of the City of New York Police Department.

45. At all relevant times, said NYPD Officers were acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

46. Plaintiff, JOSHUA ALLEN, is and at all relevant times herein, a citizen of the United States and resident of Queens County, in the State and City of New York, and brings this cause of action pursuant to 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State Civil Rights Laws.

47. Defendant, CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York.

48. The aforementioned described conduct of the Defendants result in the Plaintiff, JOSHUA ALLEN, being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from excessive force;
- c. Freedom from battery to his person;
- d. Freedom from illegal search and seizure;

- e. Freedom from false arrest;
- f. Freedom from racial discrimination; and
- g. Equal protection under the law.

49. The Defendants subjected the Plaintiff, JOSHUA ALLEN, to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution.

50. The direct and proximate results of the Defendants' acts are that Plaintiff, JOSHUA ALLEN, has suffered, and continues to suffer, severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR AN TWELFTH CAUSE OF ACTION

51. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

52. Defendant, CITY OF NEW YORK, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure, excessive force, especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be on probable cause.

53. Defendant, CITY OF NEW YORK, was negligent by failing to implement a policy with this police department and instruct police officers who, absent the consent of Plaintiff, JOSHUA ALLEN (or similar situated individuals), or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals such as

Plaintiff, JOSHUA ALLEN, here, where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant or suspect is not resisting arrest.

54. Defendant, CITY OF NEW YORK, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

- a. Probable cause must be present before an individual such as the Plaintiff, JOSHUA ALLEN, herein can be arrested.
- b. Force cannot be used against an individual who does not physically resist arrest.
- c. A person's property may not be confiscated and destroyed, and economic opportunity may not be interfered with absent sound legal justification

55. The foregoing acts, omissions and systematic failures are customs and policies of the City of New York which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, JOSHUA ALLEN, and commit an assault/battery to his person.

AS AND FOR AN THIRTEENTH CAUSE OF ACTION

56. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

57. Defendant, CITY OF NEW YORK, knew, or should have known about the propensity for the violations as alleged herein to occur, as they occurred in the past.

58. Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained herein, due to the prior history of the NYPD Officers, knew or should have known the bad disposition of said Defendant officers and defendants had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the City of New York and

that due to their lack of training, these officers should have adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

59. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

60. Defendant maliciously prosecuted Plaintiff, JOSHUA ALLEN, by issuing several criminal summonses which were unsubstantiated, unsupported by any facts, in bad faith and without probable cause.

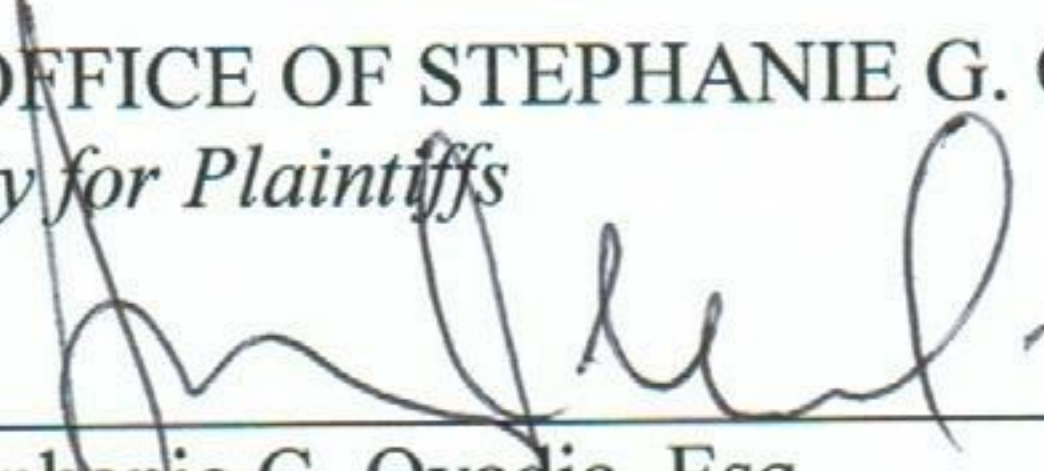
61. Defendants caused the summonses to be issued in malice because there was no violation of law as alleged in the summonses.

62. Said summonses were terminated in favor of Plaintiff, JOSHUA ALLEN, as all summonses were dismissed in a judicial proceeding.

WHEREFORE, Plaintiffs demands judgment against the defendants in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: South Hempstead, New York
April 22, 2016

LAW OFFICE OF STEPHANIE G. OVADIA
Attorney for Plaintiffs



By: Stephanie G. Ovadia, Esq.
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VERIFICATION

I, **STEPHANIE G. OVADIA**, an attorney admitted to practice in the courts of New York State, state that I am member of the firm of **LAW OFFICE OF STEPHANIE G. OVADIA**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs are because Plaintiffs reside outside the county affirmant maintains her office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: South Hempstead, New York
April 22, 2016


STEPHANIE G. OVADIA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

McEVANS FRANCOIS and JOSHUA ALLEN,

Plaintiffs,

-against-

Index No.: 26295/2015E

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POLICE OFFICER GUERRERO, TAX REG. #953935,
POLICE OFFICER McCLOUD, TAX REG. #954114, and
OFFICERS JOHN AND JANE DOE 1-50, SAID NAMES
BEING FICTITIOUS AND PRESENTLY UNKNOWN,

Defendants.

LAW OFFICE OF STEPHANIE G. OVADIA

Attorney for Plaintiffs

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South Hempstead, NY 11550

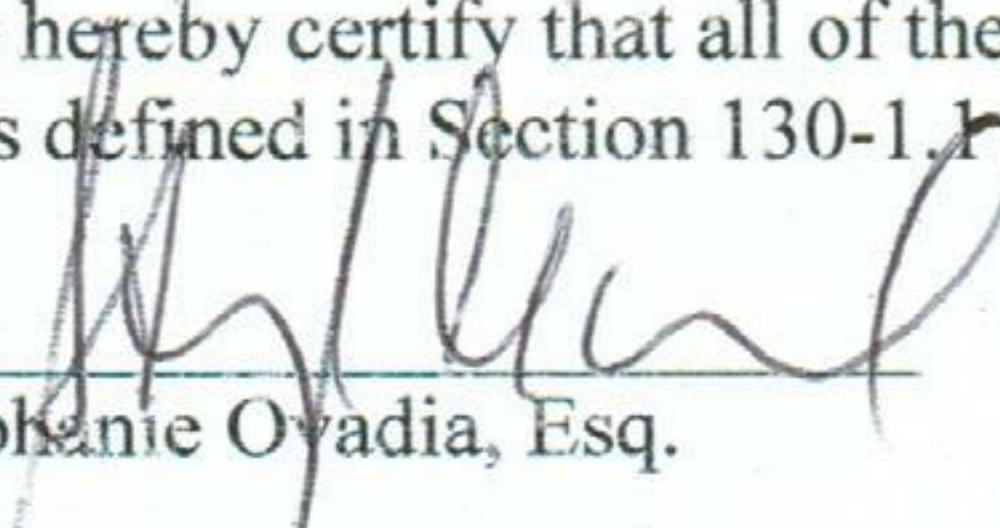
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AMENDED VERIFIED COMPLAINT

The undersigned, an attorney at law, does hereby certify that all of the papers sent, filed or submitted to the Court are not frivolous as defined in Section 130-1.1(c) of the Rules of the Chief Administrator of the Courts.


Stephanie Ovadia, Esq.